

IN THE CIRCUIT COURT OF THE _____ JUDICIAL CIRCUIT,
IN AND FOR _____ COUNTY, FLORIDA

Case No: _____

Division: _____

_____,
Petitioner,

and

_____,
Respondent.

**TEMPORARY INJUNCTION TO PREVENT REMOVAL OF MINOR
CHILD(REN) AND/OR DENIAL OF PASSPORT SERVICES
(EX PARTE)**

Upon verified motion of ☐ Petitioner ☐ Respondent, the Court has jurisdiction of the parties and the subject matter and the Court being fully advised, it is ORDERED and ADJUDGED that:

NOTICE OF HEARING

This Temporary Injunction to Prevent Removal of Child(ren) has been issued without prior notice to Respondent. Pursuant to Rule 1.610, Florida Rules of Civil Procedure, the other party may file a motion to dissolve or modify this temporary injunction and a hearing will be scheduled within 5 days of that motion.

If no motion to dissolve is filed, Petitioner and Respondent are instructed that they are scheduled to appear and testify at a hearing regarding this matter on {date} _____, at _____ a.m./p.m., when the Court will consider whether the Court should continue, modify, or dissolve this Temporary Injunction to Prevent Removal of Child(ren) and/or Denial of Passport Services, which would remain in effect until modified or dissolved by the Court, and whether other things should be ordered, including who should pay the filing fees and costs. The hearing will be before The Honorable {name } _____,

_____, at {room name/number, location, address, city} _____, Florida.

IF PETITIONER AND/OR RESPONDENT DO (DOES) NOT APPEAR, THIS TEMPORARY INJUNCTION MAY BE CONTINUED IN FORCE, EXTENDED, OR DISMISSED, AND/OR OTHER ADDITIONAL ORDERS MAY BE ISSUED, INCLUDING THE IMPOSITION OF COURT COSTS.

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact:

{identify applicable court personnel by name, address, and telephone number}
at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

FINDINGS

1. It appears from specific facts shown by verified motion that immediate and irreparable injury, loss, or damage will result to the minor child(ren) if a temporary injunction is not issued without notice to the other party.
2. ☐ Petitioner's ☐ Respondent's attorney has certified in writing any efforts made to give notice.
3. The reasons why notice should **not** be given are: _____

TEMPORARY INJUNCTION

*{indicate **all** that apply}*

1. ☐ The following child(ren) shall not be removed from the jurisdiction of this Court during the pendency of this proceeding, or until further order of this Court:

Name	Birth date
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
2. ☐ Petitioner ☐ Respondent shall not apply for any passports or passport services on behalf of the child(ren).
3. ☐ Petitioner ☐ Respondent shall immediately deliver any existing passports for the child(ren) to *{name}* _____.
4. The Court may enforce compliance with the terms of this injunction through civil and/or indirect criminal contempt proceedings, which may include arrest, incarceration, and/or the imposition of a fine.
5. Violation of this injunction may constitute criminal contempt of court.

6. Bond.
- a. ☐ Bond is waived because this injunction is issued solely to prevent physical injury or abuse of a natural person.
- b. ☐ This order is conditioned upon ☐ Petitioner ☐ Respondent posting bond in the sum of \$ _____ with the clerk of this Court.

EXPIRATION.

This injunction shall remain in effect until the minor child(ren) reach(es) the age of 18, until the hearing scheduled herein, if any, or {date} _____, whichever occurs first, unless modified by further order of this Court.

DONE AND ORDERED at _____, Florida on {date} _____.

CIRCUIT JUDGE

I certify that a copy of the {name of document(s)} _____ was
(☐) mailed (☐) faxed and mailed (☐) e-mailed (☐) hand-delivered to the parties and any other person(s) or entities listed below on {date} _____.

By: Clerk of Court, Designee, or Judicial Assistant

Petitioner (or his or her attorney)
Respondent (or his or her attorney)

U.S. Department of State
Office of Children's Issues
2201 "C" Street NW
CA/OCS/CI
Washington, D.C. 20520

Fax (202) 736-9133
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